

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JUNE 25, 2026, AT 8:30 A.M.

18. S-CV-0056130 HOWARD, JASON v. CENTRAL PARK SYSTEMS

Defendants' Motion to Stay Action

Preliminary Matters

Defendants' requests for judicial notice are granted.

Ruling on Motion

Defendants move to stay the action because there is a substantially similar controversy pending in El Dorado County.

The exclusive concurrent jurisdiction doctrine provides “when two or more courts have subject matter jurisdiction over a dispute, the court that first asserts jurisdiction assumes it to the exclusion of the others. . . . [T]he rule of exclusive concurrent jurisdiction does not require absolute identity of parties, causes of action or remedies sought in the initial and subsequent actions.” (*Shaw v. Superior Court of Contra Costa County* (2022) 78 Cal.App.5th 245, 256.) Moreover, “it is the tribunal where process is served first which has priority, regardless of which action was filed first.” (*Mungia v. Superior Court for Los Angeles County* (1964) 225 Cal.App.2d 280, 283.)

Here, El Dorado County acquired jurisdiction first in the action 26CV0275 because the proof of service filed in that action shows service was effectuated on February 9, 2026. However, service was not effectuated on defendants in the Placer County action until March 6, 2026.

Plaintiffs point the court to the proof of service filed in the Placer County action on October 7, 2025, that purports to show service on defendant “Central Park Systems, Inc. dba Fortis Telecom, a California corporation.” But, a corporation must be served to either the person designed as agent for service of process, “president, chief executive officer, or other head of the corporation, a vice president, a secretary or assistant secretary, a treasurer or assistant treasurer, a controller or chief financial officer, a general manager, or a person authorized by the corporation to receive service of process.” (code Civ. Proc., § 416,10, subds. (a)–(b).) The proof of service filed on October 7, 2025, does not indicate service on any of these individuals. Nor does the proof of service filed on January 13, 2026, comply with this requirement or indicate the complaint and summons were included in the papers served.

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Additionally, the judicially noticed documents reveal the two matters arise from the same transactions or events and thus the controversies are substantially similar.

Accordingly, defendants' motion is granted and this matter is stayed. An order to show cause re: stay is set for November 19, 2026, at 9:00 a.m. in Department 3.

Defendants' Demurrer and Alternative Request to Hear Previously Filed Motion to Stay Concurrently

The demurrer is dropped from calendar as moot in light of plaintiffs filing a first amended complaint on April 10, 2026.

19. S-CV-0056674 AVALOS, MIRIAM v. HYUNDAI MOTOR AMERICA

Defendant's Motion to Compel Binding Arbitration

Preliminary Matters

Both parties' requests for judicial notice are granted.

Plaintiff's objections to Ali Ameripour's declaration are sustained.

Ruling on Motion

Defendant moves to compel arbitration of plaintiff's complaint.

A request to compel arbitration under the FAA may be brought in state court. (*Southland Corp. v. Keating* (1984) 465 U.S. 1, 16; *Main v. Merrill Lynch, Pierce, Fenner & Smith, Inc.* (1977) 67 Cal.App.3d 19, 24, disapproved of on other grounds in *Rosenthal v. Great Western Financial Securities Corp.* (1996) 14 Cal.4th 394.) The arbitration statutes evidence a strong public policy in favor of arbitration that is frequently approved and enforced by the courts. (*Madden v. Kaiser Foundation Hospitals* (1976) 17 Cal.3d 699, 706; *Laswell v. AG Seal Beach, LLC* (2010) 189 Cal.App.4th 1399, 1405.) The FAA governs a contractual arbitration where there is a written contract involving interstate or foreign commerce or maritime transactions. (9 U.S.C. §§1, 2.) Where the parties incorporate the FAA into the agreement, the FAA governs a party's request to compel arbitration. (*Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 346.) A threshold question for any motion to compel arbitration is whether an agreement to arbitrate exists between the parties. (*Cruise v. Kroger Co.* (2015) 233 Cal.App.4th 390, 396.) Defendant carries